



Contracted Workers: EEO

Overview

To establish standing under [29 CFR 1614.103](#), a complainant must be either an employee or an applicant for employment of the agency against which the allegations of discrimination are raised. As there are a significant number of contract workers in federal work spaces, agencies need to carefully assess how to handle EEO claims filed by individuals who are not technically federal employees. The Equal Employment Opportunity Commission has applied a common law of agency test to determine whether these individuals may pursue their claims through the federal administrative process. Agencies seeking to avoid improperly dismissing a case should look at individual circumstances and apply the EEOC's decisions with detailed precision.

This Quick Start Guide covers the following Key Points:

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5. [Contract provides evidence of intent](#)

Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cit source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive V rights.

General principles

- The administrative EEO complaint process is limited to federal employees and applicants for employment. [29 CFR 1614.103](#) (c).
- The commission must determine whether the complainant is an agency employee or is connected to the agency with aspects of the relationship that are indicative of an employer/employee relationship. *Bryant v. Department of Justice*, [107 LRP 27058](#), EEOC No. 0120064102 (EEOC OFO 2007).
- Clients of contract firms, including the federal government, qualify as employers of workers assigned to them if the clients have sufficient control over the workers, regardless of whether the worker is on the federal payroll. *Baker v. Department of the Army*, [106 LRP 16330](#), EEOC No. 01A45313 (EEOC 2006).
- The EEOC considers "what actually happens in the workplace," with a specific focus on whether the agency controls the means and manner of the individual's work. *Serita B. v. Department of Defense, Department of the Army*, [116 LRP 49261](#), EEOC No. 0120150846 (EEOC OFO 2016).
- In *Bryant v. Department of Justice*, [107 LRP 27058](#), EEOC No. 0120064102 (EEOC OFO 2007), the EEOC cited *Ma Department of Health and Human Services*, [98 FEOR 3226](#), EEOC Nos. 01962389 and 01962390 (EEOC 1998), which provides the factors to be considered in applying the common law of agency test to determine whether an individual is an agency employee versus a contractor. None of the following factors is determinative standing alone -- all aspects of an individual's relationship with the agency must be considered:
 - The employer has the right to control when, where, and how the worker performs the job.
 - The work does not require a high level of skill or expertise.
 - The employer furnishes the tools, materials, and equipment.
 - The work is performed on the employer's premises.
 - There is a continuing relationship between the worker and the employer.
 - The employer has the right to assign additional projects to the worker.
 - The employer sets the hours of work and the duration of the job.
 - The worker is paid by the hour, week, or month rather than the agreed cost of performing a particular job.
 - The worker does not hire and pay assistants.
 - The work performed by the worker is part of the regular business of the employer.
 - The worker is not engaged in his own distinct occupation or business.
 - The employer provides the worker with benefits such as insurance, leave, or workers' compensation.
 - The worker is considered an employee of the employer for tax purposes (i.e., the employer withholds federal, state and Social Security taxes).
 - The employer can discharge the worker.
 - The worker and the employer believe that they are creating an employer-employee relationship.
- The above list is not exhaustive. "Not all or even a majority of the listed criteria need be met. Rather, the determination must be based on of the circumstances in the relationship between the parties, regardless of whether the parties refer to it as an employee or as an independent contractor relationship." *Bryant v. Department of Justice*, [107 LRP 27058](#), EEOC No. 0120064102 (EEOC OFO 2007).
- The Army improperly dismissed the EEO complaint of a contractor worker for failure to state a claim, reasoning that he was not an agency employee. The EEOC faulted the agency's "sparse final decision" that did not include any relevant facts, any reference to the factors to be

considered, or any analysis. The agency had the burden to support its decision, and it fell short when it referenced relevant caselaw only in its appeal. *Alfredo S. v. Department of the Army*, [121 LRP 22963](#), EEOC No. 2021001400 (EEOC OFO 2021).

Agency as employer

- The EEOC found that the complainant, a contract instructor for the CIA, was an agency employee for the purposes of his EEO complaint. Although his work required a high level of expertise, he was paid by the course, and received no benefits from the agency, other factors led to the EEOC's decision finding an employment relationship. The agency, not the complainant, scheduled when classes started and their duration, and determined the course curriculum and requirements. The complainant worked on agency premises using agency equipment. He continuously worked for the agency under a series of contracts for five years and expected a successive contract for two years of service. The EEOC additionally found that the agency's ability to remove the complainant particularly significant. *Royce O. v. Central Intelligence Agency*, [122 LRP 23525](#), EEOC No. 2022001231 (EEOC OFO 2022).
- The Department of the Interior improperly dismissed a translator's complaint for failure to state a claim. The agency exercised sufficient control over the translator's performance to qualify as his de facto employer. It entered into a personal service contract directly with him. The agency set the terms, including the translator's duties and responsibilities. The agency monitored his performance. It provided him with the office space, supplies, and equipment to perform his job. The translator worked for the agency for 14 years. *Clement D. v. Department of the Interior*, [116 LRP 11764](#), EEOC No. 0120142894 (EEOC OFO 2016).
- The Department of Defense improperly dismissed a complaint brought by a staffing firm's employee for failure to state a claim. The EEOC found that the agency exercised sufficient control over the complainant's position to qualify as her employer for the purpose of the EEO complaint process. *Breanna S. v. Department of Defense, Defense Threat Reduction Agency*, [116 LRP 12797](#), EEOC No. 0120142256 (EEOC OFO 2016).
- An Arabic language instructor who worked under a blanket purchase agreement for the Department of State was considered an agency employee for the purposes of her EEO complaint. Considering the totality of the circumstances, the EEOC found the nature of the working relationship was such that the agency retained a considerable degree of control over the complainant's job performance. *Kereem v. Department of State*, [112 LRP 24017](#), EEOC No. 0520110069 (EEOC 2012).
- A contract employee who worked as a personnel specialist was an agency employee for the purposes of her EEO complaint based on the agency's control over her position. She worked on agency premises using an agency electronic program to process travel vouchers. She was supervised by an agency employee who assigned her work and approved her leave. Further, an agency supervisor had a role in her termination. *Martinez v. Department of the Navy*, [112 LRP 2630](#), EEOC No. 0120113494 (EEOC OFO 2012).
- The complainant alleged that the agency subjected her to discrimination on the bases of sex (female), national origin (Tunisian), and reprimand when she was subjected to a hostile work environment. The EEOC found that she was a de facto agency employee under the common law of agency test, so her complaint could proceed. *Bashrawi v. Department of State*, [110 LRP 51838](#), EEOC No. 0120101859 (EEOC OFO 2010).
- Where the complainant had regular interaction with her supervisor, who was an agency employee, the supervisor directed her to attend meetings, seminars and conferences, and set her work schedule and required leave, the EEOC found that she could file an EEO complaint against the agency. It also noted that she was required to follow agency policies and regulations, she worked at agency headquarters, and the agency provided her with work equipment and supplies. *Gray v. Department of Transportation, Federal Aviation Administration*, [110 LRP 45363](#), EEOC No. 0120091375 (EEOC OFO 2010).
- The complainant worked as a dentist for a contractor at an Air Force facility. In concluding that he was an employee for EEO purposes, the EEOC noted in part that he performed his work in an agency facility where the agency provided administrative support, as well as all the equipment, supplies and dental clinic attire. The complainant submitted his requests for leave to an agency manager, and the agency could request his termination. The agency and the company agreed that the contract was to be performed "under the control and general supervision" of an Air Force commander. *Ames v. Department of the Air Force*, [108 LRP 10175](#), EEOC No. 0120073926 (EEOC OFO 2008).
- Hadley:** In *Schwartz v. Department of the Navy*, [107 LRP 42768](#), EEOC No. 0120071769 (EEOC OFO 2007), the complainant, a skilled electrician, worked at the agency's premises without much direct supervision. However, to the extent supervision was given, it was under the direction of an agency maintenance manager. Moreover, the agency provided tools, materials and equipment. The main function of the contractor was to receive time cards, which the agency approved, and pay the complainant. The commission found that the complainant was an employee of the agency for Title VII purposes. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Day to Day Activities; Performance; and Supervision](#).
- Citing recent court decisions, as well as factors in the common law of agency test, the EEOC found the complainant, a court security officer employed by AKAL Security Inc., qualified as a DOJ employee for the purposes of his EEO complaint. The agency provided the essential equipment for the job and retained exclusive control over the work performed, including "the time, place, and manner in which it must be performed, and the number of individuals performing it at any given time." *Bryant v. Department of Justice*, [107 LRP 27058](#), EEOC No. 0120064102 (EEOC OFO 2007).
- An editor with the Broadcasting Board of Governors was an agency employee because the agency exercised significant control over her day-to-day work, even though it referred to her as a contractor. The agency did not provide the editor with benefits or withhold taxes from pay, but it assigned her work every day, set her schedule, and paid her by the shift, not by the particular job. The editor used agency equipment, and the agency had the power to discharge her. *Alark v. Broadcasting Board of Governors*, [107 LRP 46335](#), EEOC No. 0120072047 (EEOC OFO 2007).
- Although the complainant was listed as a tribal employee, the EEOC found that she was an employee of the agency's Bureau of Indian Affairs for the purposes of her Title VII complaint because the agency exercised a great deal of authority over her work. *Smith v. Department of the Interior*, [98 FEOR 1013](#), EEOC No. 01970503 (EEOC OFO 1997).

Joint employers

- Hadley:** When a determination is made that an agency exerts sufficient control over a contract employee or consultant to be considered an employer under the anti-discrimination laws, this does not necessarily exempt the contractor from all liability. In such situations, the agency is considered a "joint employer" with the contractor. [Hadley Guide to Federal Sector Equal Employment Law](#)

[and Practice: Independent Consultants and Contractors](#); see also [Enforcement Guidance: Application of EEO Laws to Contingent Workers Placed by Temporary Employment Agencies and Other Staffing Firms](#).

- The EEOC has recognized that a "joint employment" relationship may exist where both the agency and a contractor may be deemed employers. [Enforcement Guidance: Application of EEO Laws to Contingent Workers Placed by Temporary Employment Agencies and Other Staffing Firms](#).
- A determination of joint employment requires an assessment of the comparative amount and type of control the contractor and the agency each maintain over a complainant's work. An agency will qualify as a joint employer of an individual if it has the requisite means and manner of control over the individual's work, whether or not the individual is on the federal payroll. [Enforcement Guidance: Application of EEO Laws to Contingent Workers Placed by Temporary Employment Agencies and Other Staffing Firms](#).
- One of the most important factors in determining if an agency is a joint employer is the agency's power to release the complainant from providing services to the agency. Such release is tantamount to removal. *Wilson v. Department of the Army*, [111 LRP 65157](#), EEOC No. 0120112541 (EEOC OFO 2011).
- The Department of Defense improperly dismissed an EEO complaint brought by a contractor for failure to state a claim. While the agency noted that the complainant's work "appeared to be highly technical in nature," the EEOC found its analysis did not reflect a holistic consideration of all aspects of the complainant's relationship with the agency. The means and manner of the complainant's work was determined by both the agency and the contractor. The agency had "substantial involvement," including a federally appointed manager and oversight committee, strategic and technical input for research and administrative efforts, and collaboration in research efforts. Further, there was no evidence that the complainant worked for any other entity besides the agency during her 18-year tenure with the contractor. Although the agency director did not have direct supervisory authority over her, the record showed that he had influence over whether her contract was terminated. Also, he had significant control over the complainant's professional standing and development because he was able to remove her name as an author of her work product. *Glynda S. v. Department of the Army*, [123 LRP 25233](#), EEOC No. 2023001848 (EEOC OFO 2023).
- The EEOC reversed the Army's decision to dismiss a harassment complaint filed by a dental assistant, who was a contract employee at a Army dental clinic. Although the agency asserted that the assistant self-identified as a contract employee, and the contractor was responsible for her compensation, benefits, and social security withholding, the EEOC found she was a joint employee of the agency. Agency employees provided the assistant with her assignments and there was no on-site supervisor from the contractor. She worked on agency property and used dental equipment and supplies provided by the agency. Her work schedule and hours were based on set dental clinic hours. An agency manager was responsible for granting or denying her leave requests. Further, her employment was effectively terminated at the agency manager's request. *Ranae P. v. Department of the Army*, [122 LRP 4676](#), EEOC No. 2021005034 (EEOC OFO 2022).
- The EEOC found the agency exercised sufficient control over the complainant, a staffing firm employee who worked as a senior research scientist at the National Aeronautics and Space Administration Langley Research Center to be deemed his joint employer. The complainant coded and programmed an agency program website. He met weekly with the agency team lead, who assigned him tasks to do on the website. He worked primarily at the staffing firm's facility but went to the agency's premises for some meetings. He worked on a laptop provided by the staffing firm, but also used agency equipment and the agency's VPN. He worked for the staffing firm serving the agency for nine years, a long duration. He applied for the job on the staffing firm's website, but the agency was involved in the hiring decision. He went to the agency's facility and was interviewed by an agency official. Finally, the agency played a significant role in the decision to remove him. *Sonny M. v. National Aeronautics and Space Administration, Langley Research Center*, [121 LRP 25336](#), EEOC No. 2021001448 (EEOC OFO 2021).
- The Department of Education improperly dismissed an EEO complaint by an information technology specialist working for a contractor. The EEOC found that the agency exercised sufficient control over the specialist's position to qualify as her joint employer for EEO complaint purposes. The agency asserted that the contractor made the ultimate decision to terminate the specialist. However, the record showed that an agency manager had substantial input and control over the decision. Further, the agency required her to work at its facility four days per week using its equipment and allowed her to telework one day per week. The agency manager authorized her badge and security clearance. *Nicki B. v. Department of Education*, [116 LRP 8277](#), EEOC No. 0120151697 (EEOC OFO 2016).
- A marine observer for an Army contractor alleged that she was discriminatorily harassed, as well as physically assaulted and retaliated against for reporting the harassment. The EEOC found that the agency exerted sufficient control over the observer to be considered her joint employer for the purposes of Title VII. She worked on board the agency's vessel and resided there when she was not working. The agency provided telephones, fax machines, and copiers. The EEOC found that the alleged incidents of harassment reflected a measure of control over the observer's work environment. Further, while the agency contended that it was not authorized to terminate her, forcing her to leave the vessel on the threat of arrest essentially removed her from employment. *Kendra W. v. Department of the Army*, [115 LRP 53762](#), EEOC No. 0120152150 (EEOC OFO 2015).
- The agency improperly dismissed the complainant's case after determining she was not an employee. The EEOC found that the agency retained sufficient control over her to qualify as a joint employer. She worked continuously for the agency for a number of years. Her employment was terminated at the request of an agency manager. Agency management controlled her work assignments, her workspace provided her with day-to-day directions, and approved her leave. *Tucker v. General Services Administration*, [111 LRP 63706](#), EEOC No. 0120102242 (EEOC OFO 2011).
- Applying the common law of agency test, the EEOC found the agency exercised sufficient control over the complainant's position to qualify as his joint employer. The agency recruited the complainant and referred him to the contractor for a job. He worked on agency premises, used agency equipment, was assigned work by an agency supervisor and worked directly with agency employees. The contractor indicated that it was not part of the decision to terminate the complainant. *Wilson v. Department of the Army*, [111 LRP 65157](#), EEOC No. 0120112541 (EEOC OFO 2011).
- The complainant was jointly employed by FSS Alutiiq Joint Venture and the Department of the Navy. She was supervised by a Navy employee. Her only contact with Alutiiq staff was to send them time cards and leave slips that were previously approved by the agency. She attended agency meetings at the beginning and end of her shift, the agency assigned her work and provided her with safety training, and worked on agency premises, using agency tools for the most part. *Schwartz v. Department of the Navy*, [107 LRP 42768](#), EEOC No. 0120071769 (EEOC OFO 2007).

- The agency improperly dismissed an EEO complaint alleging discriminatory nonselection. Although the licensed practical nurse position a issue was to be filled through a private contractor, the agency's participation in the selection and supervision of the employee was such that the EEOC considered it a joint employer with the private contractor. *Baker v. Department of the Army*, [106 LRP 16330](#), EEOC No. 01A45313 (EEOC 2006).

Agency not an employer

- The agency appropriately dismissed an EEO complaint filed by a chemist who was employed by a contractor. The chemist did not name a federal employee who controlled the means and manner of his daily work. His employment with the laboratory began prior to working with the agency. Those who routinely directed his work, assigned priorities, and were responsible for approving his hours, were directly employed by the laboratory. Finally, the laboratory set his work hours and handled his payments. *Ira A. v. Department of Energy*, [124 LRP 24138](#), EEOC No. 2024002160 (EEOC OFO 2024).
- A contractor who worked as an intelligence analyst for the Defense Intelligence Agency was not a federal employee for the purposes of the EEO complaint. Her work required a high level of expertise, and her hours were set with no authority for overtime. An agency team lead provided general guidance and set the deadlines on assignments, but the analyst performed most of her tasks independently and a contracting firm team lead managed her performance. Also, the analyst worked on the contract for less than two years, she was a salaried employee of the contracting firm, she received leave and retirement benefits from the contracting firm, and the contracting firm paid her social security taxes. *Elda S. v. Department of Defense, Defense Intelligence Agency*, [123 LRP 34554](#), EEOC No. 2023003231 (EEOC OFO 2023).
- A holistic view of the complainant's relationship with the agency indicated that the agency did not exercise sufficient control over the complainant's employment to be considered a joint employer for purposes of the EEO complaint process. *Bert G. v. Department of Defense, Defense Intelligence Agency*, [121 LRP 37192](#), EEOC No. 2021003033 (EEOC OFO 2021).
- The agency did not have sufficient control over a physician employed by a Department of Health and Human Services contractor to be considered his common law joint employer. The only indication of agency control was that the physician worked on agency premises and used some of the agency's equipment. The contractor controlled the everyday contact, schedule, assignments, training, and responsibility. The physician admitted that he had very little interaction with the agency beyond conducting physical exams with employees or potential employees of the agency, and that he was terminated by the contractor. *Andrew L. v. Department of Health and Human Services*, [120 LRP 8798](#), EEOC No. 0120182154 (EEOC OFO 2020).
- The Consumer Financial Protection Bureau properly dismissed a sexual harassment complaint brought by a subcontractor who worked in cloud engineer position. The EEOC found that some factors indicated an employee/employer relationship -- the complainant worked at the agency's facility using an agency laptop and phone, agency officials approved occasional telework, and the complainant's teammates included agency employees. However, the EEOC found that the majority of factors indicated that the agency was not the complainant's joint employer. He was recruited by a contractor and was paid by the contractor. He owned his own company and was responsible for his tax withholdings. The project manager, an employee of the contractor, supervised the complainant, and the agency did not have input regarding the termination of individuals who worked for the contractor. *Felton Z. v. Consumer Financial Protection Bureau*, [119 LRP 15299](#), EEOC No. 2019001255 (EEOC OFO 2019).
- The Department of Defense properly dismissed a complaint brought by a bagger at an agency commissary, finding that she was not an agency employee but an independent contractor. *Complainant v. Department of Defense, Defense Commissary Agency*, [0120141786](#), [114 LRP 40162](#) (EEOC OFO 2014).
- Evidence that an agency subcontractor paid the complainant's salary and benefits, prepared her job evaluation, and removed her showed that the complainant was an employee of the subcontractor, not the agency. *Palmer v. Department of Homeland Security*, [111 LRP 41481](#), EEOC No. 0120110153 (EEOC OFO 2011).
- The agency did not exercise sufficient control over the complainant's position to qualify as her employer or joint employer for EEO purposes. The contractor hired the complainant, paid her, prepared her performance evaluations, set her work hours, and approved her leave request. Also, the complainant's work was submitted to the agency through the contractor's lead. *Strickland v. Department of the Army*, [111 LRP 15660](#), EEOC No. 0120103427 (EEOC OFO 2011).
- The complainant was a contract employee, not a federal employee. The contract provided that the contractor would make all decisions regarding hiring, removals, promotions, and reassignments, although it was required to notify the agency before taking these steps. The contractor provided work materials and also was required to maintain personnel coverage in the event of absences. The contract was clear that the intent of the parties was to create a relationship of contractor rather than employee. *Taylor v. Department of Education*, [108 LRP 15015](#), EEOC No. 0120062302 (EEOC OFO 2008).
- The complainant failed to establish that he was jointly employed by the Department of the Army and a private contractor. The contractor's decision to terminate him demonstrated that it had more control over him than the agency. Further, the contractor administered his performance evaluations, the complainant identified himself as a contract employee in his e-mails, and the contractor had the ability to address performance matters with him. *Herrera v. Department of the Army*, [108 LRP 64943](#), EEOC No. 0120082452 (EEOC OFO 2008).
- The agency appropriately dismissed the complainant's EEO complaint because he was not an agency employee. The complainant worked independently, providing all the materials to construct concrete pads at sites designated by the agency, he used his own vehicle, and he submitted invoices to the agency in order to receive payment. *Washington v. U.S. Postal Service*, [107 LRP 32907](#), EEOC No. 0120071903 (EEOC OFO 2007).
- **Hadley:** Another example is provided by *Kaissi v. Department of the Army*, [106 LRP 27882](#), EEOC No. 01A53101 (EEOC OFO 2006), where the complainant was a language instructor employed by Berlitz to teach the Iraqi language to agency employees. The commission found that the complainant was not an agency employee even though she instructed agency employees on agency premises. It noted that Berlitz hired and paid the complainant, provided all work materials and controlled the methods of teaching. In addition, her hours were set by contract and not by the agency. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Work Performed on Agency Premises and Equipment](#).
- In finding the complainant was not an employee of the agency, the EEOC noted in part he had no set hours, he did not accrue annual or sick leave, or retirement, and the agency did not withhold money from his stipend for taxes or Social Security. *Pryor v. Department of*

Health and Human Services, [104 LRP 4770](#), EEOC No. 01A35306 (EEOC OFO 2004).

- The complainant worked for a contractor, not the agency. Although the agency provided the facilities for her work, as well as certain equipment and materials, the contractor, Central Texas College, furnished her programs of instruction and lesson plans. Her working hour were established by contract, and the contractor was responsible for hiring, managing, assigning work, evaluating and disciplining its employees. The agency did not provide the complainant with medical benefits or performance evaluations, and the agency did not grant or deny her requests for leave. *Rutland v. Department of Defense, Department of the Army*, [104 LRP 38814](#), EEOC No. 01A33976 (EEOC OFO 2004).
- The evidence clearly indicated the complainant was an independent contractor providing religious education classes, not an agency employee. In part, the agency did not provide her employee benefits of any kind, and she was required to wear a name plate stating "Protestant Religious Education Contractor" in order to avoid the appearance that she was a government employee. *Kasberg v. Department of the Army*, [103 LRP 38230](#), EEOC No. 01A33431 (EEOC OFO 2003).

Contract provides evidence of intent

- An administrative judge erred in dismissing a contract employee's complaint against the Department of Justice for failure to state a claim. The EEOC found that the agency exercised sufficient control over the employee to make it his joint employer for EEO purposes. The employee worked at the agency's headquarters using agency equipment. The unit chief, an agency employee, directed the employee's day-to-day activities, while the contracting officer, another agency employee, oversaw his hours and leave. The contract said that an agency employee was responsible for monitoring performance and communicating any inadequacies. The agency also exercised control over the employee's removal from the contract and removal from his position with the agency. *Michael G. v. Department of Justice, Drug Enforcement Administration*, [123 LRP 7032](#), EEOC No. 2021004320 (EEOC OFO 2023).
- The complainant was a contract employee, not a federal employee. The contract provided that the contractor would make all decisions regarding hiring, removals, promotions and reassignments, although it was required to notify the agency before taking these steps. The contractor provided work materials and also was required to maintain personnel coverage in the event of absences. The contract was clear that the intent of the parties was to create a relationship of contractor rather than employee. *Taylor v. Department of Education*, [108 LRP 15015](#), EEOC No. 0120062302 (EEOC OFO 2008).
- The agency did not exercise sufficient control over the complainant's position to qualify as his employer. The complainant provided his own vehicle for the job; he was paid on a daily basis and neither benefits nor Social Security taxes were withheld; neither sick leave nor annual leave was provided; the termination terms were outlined in a contract; the contract expressly stated that the complainant was a contractor and the complainant identified himself as an independent contractor. *Delabar v. U.S. Postal Service*, [107 LRP 60742](#), EEOC No. 0120073551 (EEOC OFO 2007).
- Though the contract between the agency and contractor said there was no employer/employee relationship between the agency and the contractor's employees, and the contractor paid the complainant's wages and benefits, the EEOC found the language was not controlling due to the nature of the working relationship between the agency and the complainant. *Tucker v. General Services Administration*, [111 LRP 63706](#), EEOC No. 0120102242 (EEOC OFO 2011).

Other Resources

- [Quick Start Guide: Standing](#)
- ['Holistic' analysis required when considering joint employment](#)
- [EEOC Compliance Manual, Section 2: Threshold Issues](#)
- [Enforcement Guidance: Application of EEO Laws to Contingent Workers Placed by Temporary Employment Agencies and Other Staffing Firms](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 03 -- Formal Complaint Process -- Acceptance and Dismissal, Subchapter 03 -- Bases for Dismissal of Complaints, Section C -- Standing; Failure to State a Claim--Definition of Employee, Subsection 14 -- Independent Consultants and Contractors](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 03 -- Formal Complaint Process -- Acceptance and Dismissal, Subchapter 03 -- Bases for Dismissal of Complaints, Section C -- Standing; Failure to State a Claim -- Definition of Employee, Subsection 09 -- Independent Consultants and Contractors, Part e: Day to Day Activities; Performance; and Supervision](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 03 -- Formal Complaint Process -- Acceptance and Dismissal, Subchapter 03 -- Bases for Dismissal of Complaints, Section C -- Standing; Failure to State a Claim -- Definition of Employee, Subsection 09 -- Independent Consultants and Contractors, Part p: Work Performed on Agency Premises and Equipment](#)

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